



CHAPTER lvi.

An Act to confirm certain Provisional Orders of the Local Government Board for Ireland relating to the Urban Districts of Armagh Clonakilty Fermoy Kinsale Lurgan Macroom Midleton Portadown Queenstown Skibbereen and Youghal the Counties of Armagh and Cork and the Kildare Drainage District. A.D. 1903.

[30th June 1903.]

WHEREAS the Local Government Board for Ireland have made the Provisional Orders set forth in the schedule hereto under the Local Government (Ireland) Acts 1898 to 1902 :

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Local Government Board (Ireland) Provisional Orders Confirmation (No. 8) Act 1903. Short title

[Ch. lvi.] *Local Government Board (Ireland)* [3 EDW. 7.]
Provisional Orders Confirmation (No. 8) Act, 1903.

A.D. 1903.

S C H E D U L E.

COUNTY OF ARMAGH.

Armagh. Provisional Order to alter the financial relations between the Urban County Districts of Armagh Portadown and Lurgan and the County of Armagh.

WHEREAS the councils of the urban county districts of Armagh Portadown and Lurgan in the county of Armagh (in this Order referred to as "the district councils") have represented to the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") that the financial relations between the said urban districts and the county of Armagh are inequitable :

And whereas an Order altering the said financial relations would alter the provisions of certain Provisional Orders :

1 Edw. 7. c. 28. And whereas application for such Order was made to the Local Government Board within two years after the passing of the Local Government (Ireland) Act 1901 :

And whereas the Local Government Board having inquired into the circumstances think it just to make an Order altering the said financial relations :

Now therefore We the Local Government Board in pursuance of the powers given to Us by the Local Government (Ireland) Acts 1898 to 1902 and of all other powers enabling us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :—

1. As from the first day of April in the year one thousand nine hundred and one the district councils shall anything in any Act to the contrary notwithstanding be exempt from contributing to the following county-at-large charges of the county of Armagh namely :—

- (a) Salaries pensions and other expenses of officers (other than the secretary and the accountant of the county council) employed in the offices of the said secretary ;
- (b) Salaries pensions and expenses of assistant surveyors and of officers other than the county surveyor employed in the offices of the county surveyor ;
- (c) Expenses of printing books and forms other than printing provided for by subsections (2) and (3) of Section 96 of the Local Government (Ireland) Act 1898 ;
- (d) Expenses of publication of notices and documents not directly affecting the said urban county districts ;
- (e) Expenses of the purchase of or building of or of improvements or repairs to premises or portions of premises used solely as offices of the county council ;

[3 EDW. 7.] *Local Government Board (Ireland)* [Ch. lvi.]
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- (f) Cost of legal advice and law costs incurred in respect of matters not directly affecting the said urban county districts ;
- (g) Salaries and expenses of collectors of poor rate including all expenses on account of the superannuation or compensation of those collectors ;
- (h) Fees for audit of accounts of the county council ; and
- (i) Cost of steam-rollers purchased by the county council.

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 Armagh.

2. The Lurgan Town Provisional Order 1882 confirmed by the Local Government Board (Ireland) Provisional Orders Confirmation (Ballina and Lurgan) Act 1882 shall be amended as follows :—

45 & 46 Viet.
 c. lxxv.

- (1) Article 1 of the said Order shall have effect as if “main roads and other” were inserted therein after “except” wherever that word occurs in the said Article ; and
- (2) The annual contribution of one hundred pounds mentioned in Article 3 of the said Order shall be credited to the rural district or districts which include the portion of the barony of Oneiland East lying outside the urban district of Lurgan.

3. The Armagh Town Provisional Order 1895 confirmed by the Local Government Board (Ireland) Provisional Order Confirmation (No. 1) Act 1896 shall be amended as follows :—

59 & 60 Viet.
 c. ccxxxv.

- (1) Article 1 of the said Order shall have effect as if “main roads and other” were inserted therein after “except” where that word first occurs in the said Article ;
- (2) The annual contribution of one hundred and fifty pounds mentioned in Article 3 of the said Order shall be credited to the rural district or districts which include the part of the barony of Armagh outside the the town of Armagh ; and
- (3) As from the first of October one thousand nine hundred and during the currency of the existing main road declaration by the county council of Armagh the contribution by that council to the council of the urban district of Armagh in pursuance of Article 4 of the said Order shall be not less than four hundred and fifty pounds a year and as from the date on which any new main road declaration by the said county council comes into operation the said Article 4 shall be annulled.

4. The costs and expenses of the district councils and the Local Government Board incurred in respect of the application for preparation making and confirmation of this Order shall be contributed by the district councils in proportion to their rateable value and be paid out of any rate applicable to defraying the expenses incurred by the respective councils in the execution of the Public Health (Ireland) Acts 1878 to 1896.

5. This Order may be cited as the county of Armagh (Financial Relations) Order 1903.

Given under our seal of office this Twenty-eighth day of April One thousand nine hundred and three.

(L.S.)

H. A. ROBINSON.

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Provisional Orders Confirmation (No. 8) Act, 1903.

A.D. 1903.

COUNTY OF CORK.

Cork. Provisional Order to alter the Financial Relations between the Urban County Districts of Clonakilty Fermoy Kinsale Macroom Midleton Queenstown Skibbereen and Youghal in the County of Cork and the County of Cork.

WHEREAS the councils of certain urban county districts in the county of Cork (in this Order referred to as "the district councils") have represented to the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") that the financial relations between the said urban districts and the county of Cork are inequitable :

And whereas an Order altering the said financial relations would alter the provisions of the local Act and Provisional Order hereinafter mentioned :

And whereas application for such Order was made to the Local
1 EDW. 7. c. 28. Government Board within two years after the passing of the Local Government (Ireland) Act 1901 :

And whereas the Local Government Board having inquired into the circumstances think it just to make an Order altering the said financial relations :

Now therefore We the Local Government Board in pursuance of the powers given to Us by the Local Government (Ireland) Acts 1898 to 1902 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :—

1. As from the first day of April one thousand eight hundred and ninety-nine the councils of the urban districts of Clonakilty Fermoy Kinsale Queenstown and Youghal and as from the first day of April one thousand nine hundred the council of the urban district of Midleton and as from the first day of October one thousand nine hundred the council of the urban district of Skibbereen and as from the first day of October one thousand nine hundred and one the council of the urban district of Macroom shall anything in any Order or Act to the contrary notwithstanding be exempt from contributing to the following county-at-large charges of the county of Cork namely :—

- (a) Salaries pensions and other expenses of the law agent and of officers (other than the secretary and accountant of the county council) employed in the offices of the said secretary ;
- (b) Salaries pensions and expenses of the assistant surveyors and of officers other than the county surveyors employed in the offices of the county surveyors ;
- (c) Expenses of printing books and forms other than printing provided for by subsections (2) and (3) of section 96 of the Local Government (Ireland) Act 1898 ;
- (d) Expenses of publication of notices and documents not directly affecting the said urban county districts ;
- (e) Expenses of improvements or repairs to premises or portions of premises used solely as offices of the county council ;

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- (f) Cost of legal advice and law costs incurred in respect of matters not directly affecting the said urban county districts ; A.D. 1903.
Cork.
- (g) Salaries and expenses of collectors of poor rate who continued in office or were appointed on or after the first day of April one thousand eight hundred and ninety-nine including all expenses on account of the superannuation or compensation of those collectors ; and
- (h) Fees for audit of accounts of county council.

2. For and during the period of five years from the date on which the existing main road declaration of the county council of Cork became operative and thereafter so long as the said declaration remains unaltered the county council shall pay the annual sum of three hundred and seventy-five pounds to the council of the urban district of Queenstown and the annual sum of one hundred and eighty pounds to the council of the urban district of Fermoy.

3. The Queenstown Improvement Act 1862 shall be amended as follows :— 25 Vict. c. xx.

- (a) Section 5 shall have effect as if “(other than main roads or bridges forming part of such roads)” were inserted therein after “bridges” ;
- (b) Section 6 shall be repealed ;
- (c) Section 7 shall have effect as if “(other than a main road or a bridge forming part of such road)” were inserted therein after “public work”.

4. The Town of Fermoy Provisional Order 1886 confirmed by the Local Government Board (Ireland) Provisional Order Confirmation (Fermoy) Act 1886 shall be amended as follows :— 49 & 50 Vict.
c. lv.

- (a) Article 1 shall be construed as if “main roads and other” were inserted therein after “except” where that word first occurs in the said Article and as if “main roads” were inserted therein after the word “except” where that word secondly and thirdly occurs in the said article ;
- (b) Articles 4 to 7 shall be annulled.

5. The costs and expenses of the district councils and the Local Government Board incurred in respect of the application for preparation making and confirmation of this Order shall be contributed by the district councils in proportion to their rateable value and be paid out of any rate applicable to defraying the expenses incurred by the respective councils in the execution of the Public Health (Ireland) Acts 1878 to 1896.

6. This Order may be cited as the County of Cork (Financial Relations) Order 1903.

Given under the seal of office of the Local Government Board for
Ireland this Fourth day of May One thousand nine hundred
and three.

L.S.)

H. A. ROBINSON.

[Ch. lvi.] *Local Government Board (Ireland)* [3 EDW. 7.]
Provisional Orders Confirmation (No. 8) Act, 1903.

A.D. 1903.

COUNTY OF KILDARE.

*Kildare. Provisional Order to transfer the business of the Kildare District
Drainage Board to the County Council of Kildare.*

36 Vict. c. ii.

WHEREAS the Kildare Drainage District was constituted by a Provisional Order of the Commissioners of Public Works in Ireland dated the twelfth day of July one thousand eight hundred and seventy-two and confirmed by the Drainage and Improvement of Lands Supplemental Act (Ireland) 1873 and the said district is wholly situate within the county of Kildare :

And whereas it appears proper to Us the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") to make an Order transferring to the county council of Kildare the business arising in their county under the Drainage and Improvement of Land (Ireland) Acts 1863 to 1892 of the Drainage Board for the said district :

And whereas it appears to Us that there are no persons capable of acting as such Drainage Board :

61 & 62 Vict.
c. 37.

Now therefore We the Local Government Board in pursuance of the powers given to Us by section 20 of the Local Government (Ireland) Act 1898 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect :—

1. There shall be transferred to the county council of Kildare the business arising in their county under the Drainage and Improvement of Land (Ireland) Acts 1863 to 1892 of the Drainage Board for the Kildare Drainage District.

2. The costs and expenses of the county council and the Local Government Board incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the county council and may be raised equally over the whole county.

3. This Order may be cited as the Kildare Drainage Order 1903.

Given under our seal of office this Thirtieth day of April One thousand nine hundred and three.

(L.S.)

H. A. ROBINSON.

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
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